

Pushpanji Constructions (P) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 3 October 2023 · 2023:AHC:189187-DB · WRIT - C No. 32541 of 2023 · **Writ disposed; phase-wise load claim to be decided in accordance with law.**

HEADNOTE

After the petitioners confined a load-sanction writ to a direction for a final decision on phase-wise estimated power load, and the licensee did not object, the Division Bench disposed of the petition. Respondent no. 3 must decide that claim expeditiously in accordance with law, after notice if the application is deficient. The Court did not recalculate the load under clause 4.9 or Annexure 4.6.

FACTUAL SUMMARY

Pushpanji Constructions (Private) Limited and two others approached the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Limited over the estimated power load for their project. They sought disclosure of the formula and breakup used for the estimate, recalculation under clause 4.9 read with Annexure 4.6 of the Electricity Supply Code, 2005, and sanction of load in phases matching completion of the work. After a week's adjournment for the Nigam's instructions, counsel confined the writ to a request that a final decision be taken on that phase-wise sanction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

phase-wise estimated load left to the authority

HOLDING

Where the petitioners confine the writ to a direction that a final decision be taken on phase-wise sanction of estimated power load, and the licensee does not object, the Court disposes of the petition by directing respondent no. 3 to decide that claim expeditiously and strictly in accordance with law, after notice if the application has any shortcoming. It does not itself order production of the load breakup or recalculation under clause 4.9 read with Annexure 4.6. ¶ 4-6

FLAG Operative direction cites no clause. The prayer invoked 'Clause 4.9 read with Annexure 4.6'; Annexure 4.6 is not treated as clause 4.6.

PRINCIPLE TAGS

direction-to-decide-in-accordance-with-law A load-sanction writ confined to a request for a final decision, and not opposed by the licensee, is closed by requiring the competent officer to decide the claim expeditiously in accordance with law after notice of any deficiency, without the Court fixing the estimate. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ESTIMATED POWER LOAD HAD TO BE RECALCULATED UNDER CLAUSE 4.9 READ WITH ANNEXURE 4.6, AND WHETHER SANCTION HAD TO FOLLOW PHASE-WISE COMPLETION OF THE PROJECT

The mandamus for the breakup, formula, and recalculation was not pressed. Respondent no. 3 was left to decide the confined claim. ¶ 3-6

